

Present:

Mr. Justice S.M. Emdadul Hoque
and
Mr. Justice Bhishmadev Chakraborty

Death Reference No. 49 of 2016

The State

..... The petitioner

-Versus-

Md. Abul Hossain.

..... The condemned-Prisoner.

with

Criminal Appeal No. 4404 of 2016

Md. Abul Hossain.

..... The appellant.

-Versus-

The State

..... The respondent.

with

Jail Appeal No. 108 of 2016.

Md. Abul Hossain

..... The appellant.

-Versus-

The State.

.....The Respondent.

Mr. Harunur Rashid, D.A.G with

Mr. Kazi Bashir Ahmed, A.A.G with

Mr. Zahid Ahammad (Hero) A.A.G with

Mr. Md. Shafiquzzaman (Rana), A.A.G

..... for the State.

(In the reference and respondents of all the appeals)

Mr. M. Ashraful Islam, Advocate.

..... for the appellant.

(In all criminal appeal and Jail Appeal)

Heard on 04.11.2021, 08.11.2021, 14.11.2021
and Judgment on: 23.11.2021.

S.M. Emdadul Hoque, J:

This death reference has been made under Section 374 of the Code of Criminal Procedure passed by the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Tangail for confirmation of the sentence of death awarded upon the condemned-prisoner Md. Abul Hossain, son of Late Miah Chan dated 09.05.2016 in Nari-O-Shishu Nirjatan Daman Case No. 289 of 1998 arising out of Bashail Police Station Case No. 05 dated 15.07.1998 convicted under section 11(ka) of the Nari-O-Shishu Nirjatan (Special Law) Ain, 1995 and accordingly sentence him to death by hanging by the neck till he is death. Thereafter made this Death Reference under section 374 of the code of criminal procedure and sent all the records to this Court.

The condemned prisoner Md. Abul Hossain thereafter filed Jail Appeal No. 108 of 2016 through the concerned authority and subsequently preferred Criminal Appeal No. 4404 of 2016. The criminal appeal and Jail Appeal heard analogously with the death reference being disposed of by this single judgment.

The prosecution case as made out by the informant Shohidul Islam @ Shohid the P.W.1, uncle of the deceased Khodeza Begum, in short, is that the marriage was solemnized in between Khodeza Begum and condemned-prisoner Md. Abul Hossain before 1½ years. After 5/7 months of the marriage they came to know that said Md. Abul Hossain has another wife namely Jalani Begum and thereafter the condemned-prisoner Md. Abul Hossain tortured the victim for dowry. On 15.07.1998 deceased Khodeza Begum came to her parent's house and claimed Tk. 10,000/- as dowry demanded by the condemned-prisoner and for betterment the life of the deceased Khodeza Begum her father spending his all efforts collected Tk. 3,000/- and sent the deceased to the house of condemned-prisoner at about 7:30 a.m. and on the said day at noon one Labu member of the said area came to the house of the parent of the deceased Khodeza Begum and disclosed that condemned-prisoner Md. Abul Hossain killed the victim for non-fulfillment of the dowry. On getting the said information he along with the parents and other relatives of the victim went to the house of the condemned-prisoner Md. Abul

Hossain and they could not find any male member of the said house and saw the dead body of the victim was lying on the floor of dwelling house of the said accused. They found different marks of violence in the neck, head and other parts of the dead body and while on asking the facts to the women of the said house they disclosed that accused Md. Abul Hossain killed the victim on strangulation due to non-fulfillment of the dowry. Thereafter they went to the Bashail police station and Md. Shahidul Islam uncle of the victim lodged Ejaher verbally and found true he put his signature. Thereafter the police came to the said house and held the inquest of the dead body and sent the corpse to the Tangail Sadar Hospital morgue for autopsy. Hence the case.

The case was investigated by the P.W.11, Sub-Inspector of police Md. Mir Mosharof Hossain (Officer-in-charge) of Bashail Police Station, Tangail, who visited the place of occurrence, held the inquest of the dead body, sent the corpse to the morgue for autopsy, prepared the sketch map along with separate index, seized the alamats, examined the witnesses and recorded their statements under Section 161 of

the Code of Criminal Procedure and seized alamats from the house of the accused Md. Abul Hossain and after completing all the formalities of the investigation found prima-facie case against the two accused namely Md. Abul Hossain and his 1st wife Jalani Begum and submitted charge-sheet under Section 11 (ka) of the Nari-O-Shishu Nirjatan (Special Law) Ain, 1995 being C.S. No. 59 dated 03.11.1998.

The case record ultimately transmitted to the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Tangail and renumbered as Nari-O-Shishur Case No. 289 of 1998 who took cognizance and thereafter the condemned-prisoner Md. Abul Hossain himself surrendered and the tribunal framed charge against the accused under Section 10 (1) of the Nari-O-Shishu Nirjatan (Special Law) Ain, 1995 on 13.04.1999 which was read over to him to which he pleaded not guilty and claimed to be tried.

At the trial the prosecution examined as many as 11 (eleven) witnesses to prove the prosecution case and they were duly cross-examined by the defence. But the defence examined none.

After close of the prosecution evidence the accused-condemned-prisoner was examined under section 342 of the code of criminal procedure which was read over to him to which they reiterated him innocence again.

The defence case could be gathered from the trend of cross-examination of the prosecution witnesses and the examination under section 342 of the Code of Criminal Procedure is total denial of the prosecution case and claimed that the victim had been suffering from serious ulcer pain and for this reason she committed suicide by hanging and at that time the accused was in the Korotia bazar and another accused Jalani Begum was in the house of her parents.

The tribunal after consideration of the evidence on record found the guilty of the condemned-prisoner Md. Abul Hossain and convicted him as aforesaid and acquitted the accused Jalani Begum from the charge leveled against her by its judgment and order of conviction dated 09.05.2016 and sent all the documents to this Court and made this death reference under section 374 of the Code of Criminal Procedure for confirmation of death sentence.

Mr. Zahid Ahammad (Hero), the learned Assistant Attorney General takes us through the F.I.R, the charge sheets, the charge, the inquest report, the post-mortem report, the deposition of the witnesses, the 342 examination, the relevant exhibited documents, the impugned judgment and order and the papers and documents as available on record.

Mr. Md. Harunur Rashid, the learned Deputy Attorney General appearing on behalf of the State submits that the victim Khodeza Begum was married to the condemned-prisoner Md. Abul Hossain was admitted and no dispute about the date and the place of occurrence but some witnesses disclosed the time of occurrence was different but admittedly which was after 10:00 a.m. to 1:00 p.m. and the same was also not be challenged by the defence. He further submits that on getting information from one Labu member the informant the parents of the victim and relatives rushed to the place of occurrence house after 5:00 p.m. and found the dead body was laying on the floor of the dwelling house of the condemned-prisoner Md. Abul Hossain, from the above facts it is also admitted that the occurrence took place at any time

around 10:00 a.m. to 3:00 p.m. at the bed room of condemned prisoner Abul Hossain.

He further submits that this is a wife killing case and the prosecution case is that due to dowry the condemned-prisoner with the help of his first wife killed the victim Khodeza Begum and on consideration of the evidence on record it is found that the prosecution succeed to prove the case beyond all reasonable doubt and the victim was killed due to dowry. He further submits that though the P.W.2 and the P.W.3 the parents of the victim specifically did not claim that the accused-condemned-prisoner Md. Abul Hossain demanded dowry but it is the facts that the victim came to the house of her parents at about 6:00 a.m. of the fateful day and demanded Tk. 10,000/- for preparing the house of her husband and the father the P.W.2 after spending his all efforts could collect Tk. 3,000/- and handed over the same to the victim and sent her to the house of her husband and she was killed thereafter.

He further submits that the other witnesses the informant and the P.W.4. P.W.5, P.W.6 and P.W.7 specifically

stated that due to claiming dowry by the condemned-prisoner Md. Abul Hossain the victim came to the house of her parents and demanded Tk. 10,000/- and it is also proved from the evidence of those witnesses that her father collected Tk. 3,000/- and sent the victim to the house of the condemned-prisoner on the said day immediate after arrival to the house of husband the victim was killed, so, it could not be said that the condemned-prisoner did not claim dowry and it is also proved from the aforesaid facts that for non-fulfillment of dowry he killed the victim. He submits that on close reading of the aforesaid evidence on record it is found that the prosecution succeed to prove the charge leveled against the condemned prisoner beyond all reasonable doubt.

He further submits that since the evidence of the prosecution witnesses were unchallenged that the victim did not claim Tk. 10,000/- and the parents did not give her Tk. 3,000/- as dowry in such circumstances of the facts it is clear that the prosecution has been able to prove the charge leveled against the condemned-prisoner and thus the tribunal rightly found the guilt of the accused and convicted them.

He further submits that now it is a settled principle that the husband is to explain how the victim died in his bedroom and in the instant case the defence measurably failed to prove that he was not present in the house at the relevant time though in the cross-examination of one witness claimed that he was at Korotia Bazar when the incident was happened but the defence did not adduce any evidence in support of his said case in such circumstances of the facts the tribunal rightly found the guilty of the condemned-prisoner Md. Abul Hossain.

In support of his argument the learned Deputy Attorney General cited the decision from the case of Golam Mortuza (Md) -versus- The State, reported in 9 BLC (AD)-229. He prayed for acceptance of the death reference and dismissal of the appeal and jail appeal.

On the contrary Mr. M Ashraful Islam, the learned Advocate appearing on behalf of the condemned-prisoner submits that the prosecution measurably failed to prove the case of dowry. He further submits that as per provision of section 2 of the Dowry Prohibition Act, 1980, the prosecution should have proved the case of dowry strictly and it should be

proved that the accused-persons committed offence with the ambit of section 10(1) of the Nari-O-Shishu Nirjatan (Special Law) Ain 1995.

He further submits that as per section 273 the police regulation of Bangal (PRB) the police officer should follow the same while preparing the sketch map but on close scrutiny of the said sketch map it was found that the investigation officer without following the said procedure of law prepared the sketch map, even the P.W.9 the only independent witness in his deposition did not mention that the dead body of victim was recovered at the house of the accused Abul Hossain. So, it is proved that the place of occurrence is not proved. He further submits that the police officer did not seize any material documents from the aforesaid house which also proved that the place of occurrence has not been proved by any legal evidence.

He further submits that on consideration of the evidence of the parents it could not be said that the condemned prisoner ever claimed dowry, the father of the victim the P.W.2 did not claim that the condemned-prisoner Md. Abul

Hossain demanded dowry, furthermore the P.W. 3 the mother of the victim was tendered and she also did not disclose that the condemned-prisoner demanded any dowry so, it is clear that the prosecution measurable failed to prove the charge of dowry. He further submits that the P.W.2 only claimed that her daughter the victim demanded Tk. 10,000/- for preparing her husband's house nothing more, so, from their evidence it is clear that the condemned-prisoner Md. Abul Hossain did not claimed dowry earlier before the aforesaid day, so, from the aforesaid facts the prosecution has measurably failed to prove the case of dowry.

He further submits that the P.W.1 the informant was the uncle of the victim who lodged the Ejaher whereas the father of victim was also present there and the P.W.4, P.W.5, P.W.6 and P.W.7 all are the close relation of the informant claimed that while the victim came to their house and claimed that the condemned-prisoner Md. Abul Hossain claimed dowry of Tk. 10,000/- but on close reading of the evidence it is found that they were not the residence of the same house only the P.W.6 claimed that victim came to their house for the said amount of

dowry of Tk. 10,000/- demanded by the condemned-prisoner but since the parents of the victim did not support their evidence as such the prosecution case clearly a doubtful one so far as regards to the dowry.

The learned Advocate further argued that the minimum requirement of the prosecution that the prosecution must prove the case that the husband was present in the house at the time of occurrence but none of the prosecution witnesses stated that the husband was present at the time of occurrence in his house, even the prosecution measurably failed to produce or examine any of the witnesses of the said house that at the fateful day the condemned-prisoner was present in the said house though the prosecution specifically stated that on asking the neighbour of the condemned prisoner they disclosed that due to dowry the condemned-prisoner killed the victim but none of them were examined, in such circumstances of the facts it is clear that the prosecution measurably failed to prove the said case and if the prosecution failed to prove the case of dowry as well as the husband was at his house at the relevant time then the charge should not be sustained. In

support the learned Advocate cited the decision of the case of The State -versus- Md. Sadequl Islam Tusar and others, reported in 63 DLR (AD)-134, the case of Mukter Hossain Khan -versus- The State, reported in 60 DLR (AD)-44 and the case of Anarul @ Anarul Huq -versus- The State, reported in 67 DLR (AD)-172.

He further relying the decision reported in 67 DLR (AD)-185, that only one sentence of death has been provided leaving no discretionary power for the tribunal to award a less sentenced on strenuous consideration this provision is to the same extent ultra-virus the constitution. He further submits that since only sentence of death declared ultra-virus though in the instant case the section 10(1) of the Nari-O-Shishu Nirjatan (Special Law) Ain, 1995, has not been considered and challenged but the principle is that only sentence of death is ultra-virus, in such circumstances of the facts the court has discretion to considered the case of sentence of the condemned-prisoner. He further submits that since the prosecution failed to prove the case of dowry in such a case the finding of the tribunal and conviction of the accused is not

sustainable since the defence succeed to make doubt that the place of occurrence has been shifted and minimum burden that the condemned prisoner was present in the said house at the relevant time as such the judgment should be set-aside. He prayed for rejection of the death reference and allowing the appeal and jail appeal.

Let us discuss the main contention of the evidence of prosecution witnesses.

P.W.1 Md. Shahidul Islam @ Sohidul, aged about 30, the informant of the case, deposed that the occurrence took place on 15.07.1998 in between 10:00 to 10:30 a.m. and the accused was Md. Abul Hossain and Jalani Begum. He identified the accused on the dock. He deposed that the victim Khodeza was his niece and she got married with condemned-prisoner Md. Abul Hossain and their conjugal life was peaceful but after 5/6 months of marriage they came to know that the said Abul Hossain has another wife namely Jalani Begum and thereafter the condemned-prisoner started to torture the victim for dowry. He further deposed that on 15.07.1998 at morning the victim Khodeza Begum came to their house and disclosed that

condemned-prisoner Md. Abul Hossain sent her to take dowry amounting to Tk. 10,000/- and for the betterment of victim her parent gave her Tk. 3,000/- and the victim went to the house of her husband and gave the same to the condemned-prisoner which made him angry and killed the victim by strangulation. He further deposed that thereafter one Labu member came to their house and told them that victim Khodeza was killed and while getting the said news he along with the parent of victim and another brother Shohidul went to the place of occurrence house and saw the dead body of victim was lying on the floor of the dwelling hut of the accused and also found marks of violence in the neck, hand, leg and another parts of the dead body. He further deposed that they called the neighbours of the accused and they told that the accused killed the victim due to dowry and thereafter they went to the Bashail police station and lodged the verbal Ejaher which was read over to him and found true he put his signature in the Ejaher. He proved the Ejaher and his signature as Exhibit No. 1 and 1(ka).

In cross-examination of the defence this witness stated that they went to the Bashail police Station in between 7:00 to

7:30 p.m. and lodged a written Ejaher and the Ejaher was written in the police station and which was read over to him and found true he put his signature. In cross he also stated that he did not mention in the Ejaher that from whom the accused claimed dowry and it is true that accused claimed Tk. 10,000/- on the date of occurrence has not been mentioned in the Ejaher and he did not see the occurrence and also did not mention the name told that he saw the victim was beaten by the accused. In cross-examination he also stated that they had no knowledge that the accused had another wife.

In cross he also stated on getting information of murder he along with the parents of the victim and his two brothers went to the house of accused and Labu member was also accompanied with them and they found about 100 people were present in the said house and hearing their hue and cry many people gathered in the place of occurrence but could not recognize them.

He deposed that he was examined by the police officer on 15.07.1998 and on the said day the parents of the victim and another brother were also examined. He denied the

defence suggestion that they were not examining on the said day.

In cross examination of the defence this witness stated that the father of victim lost his sense after looking the dead body and as such he could not file the Ejaher and same was not mentioned in the Ejaher. He denied the suggestion that he had enmity with the accused and the victim died on committing suicide. It is not true that she has been suffering from serious ulcer pain and for that reason she committed suicide and deposed falsely.

P.W.2 Dudu Miah @ Dudu, father of the victim Khodeza deposed that the informant was his brother and the victim was his daughter. On 15.07.1998 they came to know that the victim was killed from a local member of the said Union. He identified the two accused present on the dock.

He deposed that the marriage of his daughter was solemnized with the accused Abul Hossain on 15.07.1998 and she claimed Tk. 10,000/- for preparing the house and he could collect Tk. 3,000/- only and gave the same to the victim and sent her to the husband house at about 7:00 a.m. and on the

said day at about 4:00 p.m. one Labu member came to their house and told that accused Abul Hossain killed his daughter. On getting such information he along with his wife, brother Shahidul and another brother Sahidul Islam went to the house of the accused and found the dead body of his daughter which was lying on the floor of the dwelling hut of the accused and none of the inhabitant of the said house were present there and he sent his younger brother Shahidul to the police station for lodging Ejaher, thereafter the police came to the said house and brought the dead body to the police station and police examined him.

In cross-examination of the defence this witness stated that they went to the occurrence house in between 5:00 p.m. and on getting information the police came at about 8:00 to 8:30 p.m. but he could not say the distance of the police station from the said house. They found about 20/50 women were gathered in the said house and no male member was present there. The local chairman came to know the incident but he was not mentioned the witness and the local people also came to know they were not witnesses.

In cross-examination he stated that initially the police brought the dead body to the police station and did not put his signature in any papers but he put his signature while he went to the police station and he along with other witnesses were examined by the police officer on the said day. He further stated that he had no knowledge that the accused Abul Hossain has another wife. He denied the suggestion that they were angry with the accused since he did not disclose his first marriage and the deceased was not a patient of ulcers and she committed suicide due to increase the pain of ulcers.

He denied the suggestion that he was not examine on 15.07.1998 and also did not see the murder but he found the dead body of his daughter on the place of occurrence house while they went there and he denied the suggestion that the victim was not killed by the accused and they filed a false case and deposed falsely and the accused was not in the house and his daughter committed suicide.

P.W.3 Most. Hamela Begum, the mother of victim was tendered by the prosecution.

The defence cross examined her, in cross she stated that they arrived in the said house before sunset and the accused persons were fled away after killing her daughter and the police came to the said house at about 6:00 to 7:00 p.m. and she was examined by the police and thereafter the dead body was brought to the police station and the police officer examined her. Her husband and his two brothers and one grand-son were examined in between 9:00 to 10:00 p.m. She denied the suggestion that due to the abdominal pain from suffering ulcers disease she committed suicide.

P.W.4 Samsul Hoque, deposed that the date of occurrence on 15.07.1998 and the accused was Md. Abul Hossain and Jalani Begum and deceased Khodeza was his niece and she was their house to received dowry of Tk. 10,000/- for repairing the shop situated at the Bazar and the father of deceased paid Tk. 3,000/- on taking loan and send her to the house of her husband at 7:00 to 7:30 a.m.

He further deposed that at about 3:00 p.m. one Labu member informed them that the accused killed the deceased then he along with the parents of victim and Labu member

went to the house of accused and found the dead body of the victim. Thereafter they went to the Basail police station and the police came to the occurrence house. the victim was killed by thoughtling and another brother Shahidul lodged the Ejaher and he was examined by the police.

In cross-examination of the defence this witness stated that the accused Abul Hossain had a viti in the hut. In cross this witness stated that he never received rent from the shop owners.

He stated that when they could not found any male member in the said house except female members when they went to the house of accused. The Ejaher was written in the place of occurrence and he went to the police station after one hour along with the informant. In cross he also stated that he has given loan of Tk. 3,000/- to the father of victim taking loan from his wife but which was not disclosed to the police officer.

He denied the suggestion that the victim was killed and denied that the victim took poison in several time and also tried to commit suicide by hanging and which was disclosed to him by accused Md. Abul Hossain. He denied the suggestion that

the father of victim was not willing to file the case and to grab the money collected by him from the viti situated at the market of accused Abul Hossain and they filed this false case.

In cross examination he also stated that on the date of occurrence victim went to their house and he gave money to the victim but no such document in his hand.

He denied the suggestion that the victim committed suicide and at the time of incident the accused was in his shop at Korotia Bazar and his first wife was in the house of her father.

P.W.5 Moksed Mia @ Moksed Ali uncle of the deceased, deposed that on 15.07.1998 at around 6:00 a.m. the victim came to their house and demanded Tk. 10,000/- for dowry to purchase viti in the Korotia bazar and if they failed to pay the same, she could not enter into her husband house. He further deposed that his brother could not pay the said amount however, paid Tk. 3,000/- and the victim returned to their house at around 10:00 a.m. Thereafter at around 2:00 to 2:30 p.m. one Labu member came to their house and disclosed that the accused killed the victim and they went there and found

the dead body was lying on the floor and found injury in the neck. The Bashail police came to the place of occurrence and brought the dead body at around 7:00 to 7:30 p.m. and he was examined by the police.

In cross-examination of the defence this witness stated that he was a residence of Bir Pushia village Labu Miah came to their house and disclosed the facts and the union chairman Nazu Mia and Labu member from Sonail village and after getting information from Labu Miah he informed others and they went to the said house at about 2:00 to 2:30 p.m.

He denied the suggestion that he was a professional witness and he denied the suggestion that he was examined by the police on the said day and they found many people were gathered in the said house when they went there. He denied the suggestion that father of victim was not willing to file case. However, he along with his other brother to grab the viti shop of Abul Hossain filed this false case.

He stated that he did not see the murder and deposed falsely.

P.W.6, Shamsu Miah @ Pashu Miah @ Pamshu Miah, another uncle of the deceased, deposed that the occurrence took place on 15.07.1998 and at around 7:00 a.m. the victim came to their house and returned back at around 10:00 a.m. and claimed that accused sent her to receive Tk. 10,000/- as dowry for preparing the shop but the father of victim could give her Tk. 3,000/- and the victim went to her husbands house and on that day at about 1:00 to 1:30 p.m. one Labu member of Sonali village came to their house and disclosed that the accused killed the victim by throttling and they went to the said house and at around 4:00 p.m. and saw the dead body was lying on the floor of the dwelling hut of the accused. His brother went to Bashail police station and thereafter the police came to the said house and the dead body was brought to the police station and he saw the dead body with injury on the neck of the deceased.

In cross-examination of the defence this witness stated that the house of accused was about one kilometer from Korotia Bazar. He further stated that the house of Labu member is about 4 miles from Korotia Bazar who came to his

shop and informed the news about the murder and informant Shahidul was his cousin.

In cross he also stated that they went to the house of the accused and thereafter the police came to the said house. He denied the suggestion that Labu member did not inform the matter to him and he did not go to the place of occurrence and did not see the dead body and the victim did not claim dowry and he deposed falsely in favour of his cousin.

P.W.7 Md. Shahidul Miah, deposed that the date of occurrence on 15.07.1998 and the accused were Md. Abul Hossain and Jalani Begum and they were on the dock and he was a neighbour of the accused. He further deposed that on the date of occurrence at about 7:00 a.m. the victim came to the house of her parents and told them that her husband demanded Tk. 10,000/- as dowry for preparing shop situated at the bazaar. But for betterment of his daughter he could give Tk. 3,000/- and at around 10:30 a.m. she went back to the house of the husband.

He deposed that at around 2:00 to 2:30 p.m. one Labu member informed them that the accused killed the victim and

they went to the said house at around 4:00 to 4:30 p.m. and saw the dead body was lying on the floor of the dwelling hut but could not find anyone in the said house. Shahidul the uncle of the victim lodged the Ejaher in Bashail police station. The police came to the said house and brought the dead body in the police station and thereafter sent the dead body for autopsy. On the next morning, after autopsy they brought the dead body to the house of father of the victim.

In cross-examination of the defence this witness stated that accused Abul Hossain had a viti in the Korotia Bazar and the weekly hut was held on Wednesday and Thursday and to take position in the said area approximately Tk. 5,000/- to 7,000/- would be required. He was examined by the police in the police station and police only asked his relationship with the deceased. He denied the defence suggestion that he deposed falsely on behalf of his neighbour and he also denied the defence suggestion that he had know knowledge about the date of occurrence. He stated that he deposed as per instruction of the public prosecutor and the deceased was an epilepsy patient.

P.W.8 doctor Md. A. Bashit, deposed that on 17.07.1998 he was the RMO at Tangail General Hospital and he held the autopsy of deceased Khodeza Begum aged about 20 years and the dead body was brought and identified by constable Abdul Malek. He found the following injures:

(1) Scratch marking around the neck.

(2) Swelling of neck.

(3) Abrasion different size and sharp on left side or neck.

(4) Bruise on upper chest.

He further deposed that on deep desection: Tracia was found fractured, free blood found within tracia.

Neck and chest muscles were very congested.

Free blood under the neck, chest and muscles.

And opined that: **the death was due to asphexia as a result of strangulation which was ante-mortem and homicidal in nature.**

He proved the report and his signature.

He denied the defence suggestion that he prepared the post-mortem report opinion obliged inquest report and denied the suggestion that he did not find any sign of strangulation.

P.W.9, Md. Abul Hossain a U.P. member who identified the accused on the dock. He deposed that he knew the victim Khodeza and she was the residence of his union and he went to the said Habla union with the police officer which was adjacent union and he saw the dead body and the police officer prepared the inquest report in present of him and he put his signature in the inquest report but could not know nothing about the facts but subsequently he came to know that due to family rivalry the victim committed suicide.

P.W.10 Md. Liton Miah, was tendered by the prosecution but the defence declined to cross examined him.

P.W.11 Md. Mir Mosharaf Hossain the investigation officer, deposed that while he was attached at Bashail police station he filled-up the F.I.R. form and was entrusted to investigate the case. He proved the Ejaher and his signature as Exhibit No. 2 and 2/1. This witness deposed that he prepared the inquest report and proved the inquest and his signature as Exhibit No. 3 and 3/1. He deposed that he visited the place of occurrence, prepared the sketch map along with separate index and proved the same as Exhibit No. 4, 4/1, 5 and 5/1

respectively. In his investigation he tried to seize alamsats and examined the witnesses and recorded their statement. He found prima-facie case against the accused-persons and submitted the charge sheet being No. 59 dated 03.11.1998.

In cross-examination of the defence this witness stated that he visited the place of occurrence for 7 (seven) days (15/7, 26/7, 6/8, 28/8, 6/10, 23/10 and 20/10) but could not memorize whether any constable with him and stated that he found the dead body and sent the dead body to the morgue and the accused succeed to flee away.

In cross-examination he also stated that the victim Khodeza died in the dwelling house of her husband and he had no knowledge whether the accused again got married. He denied the defence suggestion that since the accused got marriage the victim committed suicide. He further stated that he sent the dead body through challan and he denied the suggestion that the victim took poison.

These all are about the evidence on record as adduced by the prosecution.

We have heard the learned Deputy Attorney General, the learned Advocate of the appellant, perused the impugned judgment, the F.I.R, the charge, the inquest report, post-mortem report, the deposition of the witnesses and all the relevant papers and documents as available on the record.

The prosecution case is that the victim was married to the condemned-prisoner Md. Abul Hossain before 1½ years of the occurrence and their conjugal life was running peacefully but after 5/6 months of the marriage it was disclosed that the condemned-prisoner Md. Abul Hossain had another wife and subsequently the condemned-prisoner Md. Abul Hossain claimed dowry and starting to torture the victim with the help of his first wife.

The further case was that on the fateful day i.e. 15.07.1998 the condemned-prisoner Md. Abul Hossain sent the victim her father house to receive Tk. 10,000/- as a dowry for repairing a shop situated at Korotia Bazar, though the father of the victim could not give her the said amount but by taking all efforts he could collect Tk. 3,000/- and gave her the

said amount and sent her to the house of condemned-prisoner Md. Abul Hossain at around 7:00 a.m.

The further case was that she handed over the said amount to her husband but he became angry and tortured her and ultimately killed her by strangulation and the informant came to know the said news at about 3:00 p.m. from one Labu member and accordingly they rushed to the occurrence house and saw the dead body of the victim was lying on the floor and found injury on the neck, hand and several parts of the body but no male member including condemned-prisoner Md. Abul Hossain of the said house was not present and on hearing hue and cry the female members and the neighbour came to the said house and disclosed that due to non-payment of dowry the accused killed the victim by strangulation. Thereafter the informant lodged the Ejaher. The police came to the said house and held the inquest of the dead body and sent the dead body to the morgue for autopsy.

The defence tried to make out a case that the victim herself committed suicide due to her chronic ulcers pain.

Further case of the defence is that at the relevant time condemned-prisoner Md. Abul Hossain was not in the house and he was in the Korotia bazar due to his business.

Considering the entire facts of the case it is found that after lodging the Ejaher by the informant the uncle of the victim police came to the said house of accused Md. Abul Hossain of Sonalia Uttarpara of Bashail police station and held the inquest of the dead body at about 8:30 a.m. but the condemned-prisoner Md. Abul Hossain and none of the male member were present at the time when the informant and the parents and other relatives of the deceased came to the house of accused Md. Abul Hossain.

In the inquest it has been mentioned that: *ÔAvj Gm A\B gxi tgvkid tñm m x Ks/ Avt gvj K mn A` BS 1 / !" #wi\$ iw%A gv ' (' vgw) i mg g#vi +gxAvj tñm Gi -v x# -m# / ti 01w# nB v g#vK 03i vknix w5 A-+2 gv) # 1B v g#vi gv nvgj vi m 6 g# 1vk3j \$# m9 x i 01w# # 1:8 Avj v# mi5y wi1)8# vi Kw# Avi⇒Kwij v?*

In the last portion of the inquest report it has been mentioned that: *Ôg#vi g#@ - 1v# 1Avk B tC1 xDv# EFvñv`*

Kwi v1GgKDv+ Evv:v t:HA` Bs1 / !" #wi\$ t-j vA gv 1' ('
 gw t) i mg g#vi +gxAvj tnvm B #vvi mv# Ey vx t-Cg t: J@i
)Kvi E #vK gvi1) Kwi vn# vKwi vKL?

The dead body was sent to the Tangail Sadar General Hospital morgue for autopsy and the doctor who held the autopsy found the following injuries:

- (1) Scratch marking around the neck.
- (2) Swelling of neck.
- (3) Abrasion different size and sharp on left side or neck.
- (4) Bruise on upper chest.

The doctor also found that: On deep desection the respective Trachea was found fractured and free blood was present in Trachea, neck and chest muscle were highly congested and free blood under the neck and chest muscle. and then opinionated to the effect: **“the cause of death was due to asphyxia as a result of strangulation which was ante-mortem and homicidal in nature.”**

The said doctor was examined as P.W.8 and the defence cross-examined him, in cross examination the defence only pointed out that he submitted an obliged post-mortem report

and no sign of strangulation in the neck of the deceased nothing more.

There is no dispute regarding the date, time and place of occurrence the dead body was found in the bed room of the condemned prisoner. The defence could not make out any case that the dead body was not found in the dwelling house of the condemned prisoner. The case of the prosecution is that the deceased was killed due to asphyxia as the result of strangulation and which was ante-mortem and homicidal in nature and no contrary view could be established by the defence in any manner, though the defence case is that the victim committed suicide, so, from the aforesaid facts it is our considered view that the prosecution succeed to prove that the deceased was killed by asphyxia as a result of strangulation.

Next question is that the victim dead body was recovered from the house of the condemned-prisoner Md. Abul Hossain at the village of Sonalia Uttarpara under Bashail police station of Tangail. It is also found that the inquest was held by the investigation officer Mr. Md. Mir Mosharaf Hossain

From the aforesaid evidence of P.W.9 it is found that though he did not specifically mention that the dead body was found in the house of condemned-prisoner Md. Abul Hossain but he stated that the police officer held the inquest and prepared the inquest report and he put his signature in the said inquest report and from where it is found that the said inquest was held at the house of the condemned-prisoner of Sonalia Uttarpara.

From the evidence of P.W.1 to P.W.7 it is found that those witnesses in a voice deposed that the victim was killed and found the dead body was lying on the floor of the dwelling house of the condemned-prisoner Md. Abul Hossain on

15.07.1998 and the defence also cross examined those witnesses but they did not cross that the said dead body was not found in the alleged house of the condemned-prisoner Md. Abul Hossain of Sonalia Uttarpara but the defence cross-examined the informant and made a suggestion to the effect:

ওঁবনম্বপক ঠা ঠা: HKV G# /) vi 1Q8 B#B 1 s Avmgx mvi G Avgi w#i R
 KJ -vg#v dmn wè vgviv: B v 1Q-8 Av S k -k#t Avmgx i wi TU
 G Dv# GB gvj vKwi vK -vg#vg#@iV Kivi K# K -Ki 1Q8 B#B tm
 tCW K tiv C D@#KJ -v tiv C : YZv mn Kwi# v1wi vg#vCj v `w
 wè vA#h# vKwi vK -vg Gv-6 t A%tgK v gvi E Kwi vKL?

The defence also made suggestion to the P.W.2 similarly as to the P.W.1, and the P.W.1 stated to the effect: ওঁবনম্বপক
 ঠা ঠা: H1g +Z K Gv tC1 Kwi v1 s Avmgx Avgi tg# K w-v Kiv
 Avgi v9 @KJ v -vtg# tCW K tiv C D@#KJ -v t1 t) i - Gv mn Kwi#
 v1wi vtg# dmn wè vA#h# vKwi vK -vKv G# /) vi 1Q-8 t1) - Gvi
 Kvi t) tm -vi A#h# vKivi t4 vKwi vKJ L?

P.W.3 the mother of victim was tendered by the prosecution but the defence also cross examined her and gave suggestion to the effect: ওঁtg# i t-` v tiv C KJ -v t-` v mn Kwi# v
 1wi vtg# dmn wè vgviv C vKL Bnvm# ঠা L?

From the aforesaid facts it is found that the defence did not cross examine those witnesses that they did not come to the house of the condemned-prisoner and saw the dead body rather only gave suggestion that she committed suicide by hanging due to ulcers and epilepsy.

We have found from the cross examination of the P.W.4 the defence only gave suggestion to the effect: **À) vi mg**
Avvxf Kv Kiv) vKj G-s#vi 1Ag +Z-vvi -vuv vKj L?

If we considered the aforesaid facts it is found that the defence though cross examined all the witnesses but did not claim or challenge that the victim was not killed in the house of the accused or the dead body was not found on the house of the condemned-prisoner Md. Abul Hossain.

The learned Advocate of the appellant submits that P.W.9 was the only independent witness and he did not disclose that the dead body was found in the house of condemned-prisoner Md. Abul Hossain. But we have already considered his evidence and the inquest report it is found that he himself was present at the time of holding inquest and he put his signature in the inquest report and from his evidence is abundantly clear that the inquest report was held at the house of the condemned-prisoner Md. Abul Hossain at Sonalia Uttarpara village and as such the victim was killed in the dwelling house of condemned prisoner.

From the aforesaid facts it is our considered view that the prosecution succeed to prove that the victim was killed at the house of condemned-prisoner Md. Abul Hossain at Sonalia Uttarpara village and from the evidence on record it is proved that the victim was killed by strangulation not by hanging. The defence though took the plea of hanging but which in support of the same the defence did not adduce any evidence. The doctor submitted the post-mortem report mentioning that the

victim was killed by strangulation not by hanging, so the case of suicide has not been proved.

Now we should consider the case of dowry. The prosecution specifically mentioned in the F.I.R. as well as the deposition of P.W.1, P.W.4 to P.W.7 that the condemned-prisoner claimed dowry and sent the victim to the house of her parents on the date of occurrence at morning and the victim claimed Tk. 10,000/- from her father but he could not pay her same and he gave her only Tk. 3,000/- as dowry but the condemned-prisoner Md. Abul Hossain could not accept the same while he became angry with the victim and killed the victim by strangulation at any time after 10:00 a.m. to 5:00 p.m. on 15.07.1998.

The learned Advocate of the appellant submitted that the parents is the natural witness and only then could say whether the condemned-prisoner Md. Abul Hossain claimed dowry from them and on close reading of their evidence it is found that the said witnesses did not disclose that the accused claimed dowry.

We have already considered the other evidence the evidence of P.W.1, P.W.4 to P.W.7. Though P.W.2 and P.W.3 the parents of the victim did not disclose that the condemned-prisoner Md. Abul Hossain claimed dowry but they claimed that their daughter came to their house at morning on the said day and then she demanded Tk. 10,000/- for construction of the shop or house and the P.W.2 gave her Tk. 3,000/- and sent her to the house of the accused.

We have also considered that the informant and others though disclosed that the condemned-prisoner Md. Abul Hossain claimed dowry but the said facts has not been challenged by the defence. The defence elaborately cross-examined those witnesses but did not cross-examine or give suggestion that the condemned-prisoner Md. Abul Hossain did not claim dowry. In such circumstances of the facts it is our considered view that the some shorts of facts of dowry has been disclosed by some witnesses but defence could not shaky their evidence.

The learned Advocate of the appellant submitted that in wife killing case the minimum requirements to prove that the

husband was present in the house at the time of occurrence but the prosecution measurable failed to prove that the condemned prisoner was present at his house at the relevant time. The learned Advocate relying upon the decision of the case of The State -versus- Md. Sadequl Islam Tusar and others, reported in 63 DLR (AD)-134, wherein their lordships held: *“it is that as a husband the accused was to explain as to how the victim met her death but the minimum that the prosecution must prove it that the husband was present in the house at the time of occurrence. Since that minimum has not been proved the High court division rightly acquitted the accused.”*

On scrutiny of the above decision we found that the said decision is not applicable in the instant case since defence also failed to adduce any evidence and proved that at the relevant time he was not in his house.

In the case of Mahabur Sheikah alias Mahabur -versus- The State, reported in 67 DLR (AD)-54, wherein their lordships held: *“It is by now a well-established principle that under section 106 of the Evidence Act, when any fact is especially within the knowledge of any person the burden of proving that*

fact is upon him. This principle has been applied in many cases where the wife has been found killed in the house of the husband where they reside together. In such circumstances the husband will have to prove by positive evidence that he was absent from the house when his wife was killed or explain by evidence how she came to meet her death."

From the aforesaid decision it is found that our Apex court considering the section 106 of the Evidence Act, took view that the burden of proving upon the fact vest upon the person who has knowledge of any fact. In the said case the court specifically took view that the husband will have to prove the positive evidence that he was absent from the house when his wife was killed or explain by the evidence how she come to meet her death.

The learned Advocate though cited the aforesaid decision but on careful consideration of the said case it goes against the defence, since the defence measurably failed to explain that at the relevant time the condemned-prisoner Md. Abul Hossain was not present at the house when the wife was killed in his dwelling house.

In so many cases our Apex court settled the principle that the husband is to explain the facts how his wife was killed in his bedroom and in the decision of the case of Gourango Kumar Shaha –versus- The State reported in 2 BLC(AD)-126, wherein their lordships held: *“On a careful consideration of the circumstance as indicated above, we find that the defence plea of alibi having been discarded and the door of the room being kept open and in the absence of any acceptable explanation as to how the wife died in the room of the husband, the only irresistible and natural conclusion will be that it is the husband alone in the circumstances of the case who is guilty of committing murder of his wife. The chain of circumstance coupled with the medical evidence on record having been considered by the learned Judges of the High Court Division, we find that the circumstantial evidence admits of non-other hypothesis than the guilt of the petitioner.”*

Similar view has been taken in the case of The State - versus- Md. Shafiqul Islam, reported in 43 DLR (AD)-92, 62 DLR (AD)-406 and 1 BLC (HCD)-45.

Considering the aforesaid facts and circumstances of the case and the discussions as made above it is our considered view that the prosecution has been able to prove the case beyond any reasonable doubt that the victim was killed at the house of the condemned-prisoner Md. Abul Hossain and she was killed by strangulation not by hanging. Furthermore, the defence failed to prove that at the relevant time the condemned-prisoner Md. Abul Hossain was not in his house and also failed to adduce any positive evidence how she died at his bedroom.

Now we considered that whether any lesser sentence can be imposed in the offence committed under section 11(ka) of the Nari-O-Shishu Nirjatan Daman Ain, 2000.

The learned Advocate submits that in the case of Bangladesh Legal Aid and Services Trust (BLAST) and others-versus- Bangladesh, represented by the Secretary, Ministry of Home Affairs and others, 67 DLR(AD)-185, wherein their lordships after consideration of the material facts and considering the series of decisions of our Apex court as well as

the decisions of abroad finally took view that sub-section 2 and 4 of section 6 of the of Bishesh Bidhan Ain and sub-section 2,3 of section 34 of the Nari-O-Shishu Nirjatan Daman Ain, 2000, and section 303 of the Penal Code declared Ultra virus of constitution. Though in ordering portion, the court did not mention the section 11(ka) of the Ain of 2000 but in the body of the judgment the same has been considered and took view that only one sentence of death has been provided leaving no discretionary power for the tribunal to award a lesser sentence on extraneous consideration. This provision is to the same extent ultra virus the constitution.

Though in the said decisions our Apex court took view that the section 11(ka) is the same extent ultra virus the constitution but in ordering portion the court did not declare the said section ultra virus the constitution. In such circumstances of the facts we are unable to accept the said arguments of the learned Advocate that considering the facts and circumstances of the case a lesser sentence may be awarded.

Furthermore, if the prosecution failed to prove the charge of dowry even then it should not be alter the conviction in another section of the General law since charge was framed in special law. This principle has been decided in the case of The State -versus- Nurul Amin Baiths (absconding) and another, reported in 15 ALR (AD)-151, wherein our Apex court after consideration of the facts took view that: *“The High Court Division sitting in appeal, revision or reference cannot convert or modify the conviction and sentenced awarded under one provision of a special law to a different provision of general law.”*

Though in considering the provision of section 374 of the code of criminal procedure in disposal of the death reference the court has power to confirm the sentence or pass any other sentence warranted by the law or may annul the conviction and convict the accused of any offence of which the sessions court might have convicted the court can convert the conviction and sentence on the same or any amended charge or may acquitted the accused person. And in several cases though our Apex court altered the conviction but since in the

latest case (15 ALR (AD)-151) our Apex court decided that the conviction and sentence awarded in Special Law should not be altered to General Law. In such a case this court has no other option to alter the conviction if the prosecution failed to prove the charge of dowry.

We have already considered that in the instant case the prosecution succeed to prove the charge of dowry and also succeed to prove the case of murder of the victim in the bedroom of the accused on the fateful day and in such circumstances of the facts we are unable to alter the conviction or to commute the sentence relying on the decision of the case of Bangladesh Legal Aid and Services Trust (BLAST) and others- versus- Bangladesh, represented by the Secretary, Ministry of Home Affairs and others, 67 DLR(AD)-185.

Considering the facts and circumstances of the case and the discussions as made above it is our considered view that the prosecution has been able to prove the charge leveled against the condemned-prisoner Md. Abul Hossain and the Tribunal rightly found the guilt of the accused.

In the result the death reference is accepted. The conviction and sentence dated 09.05.2016 passed by the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Tangail in Nari-O-Shishu Nirjatan Daman Case No. 289 of 1998 arising out of Bashail Police Station Case No. 05 dated 15.07.1998 is hereby upheld.

Consequently the Criminal Appeal No. 4404 of 2016 is hereby dismissed and consequently Jail Appeal No. 108 of 2016 is disposed of.

Communicate the impugned judgment and order and send down the lower Court records at once.

Bhishmadev Chakrabortty, J:

I agree.

M.R.